



CHAPTER xxiv.

An Act to confirm a Provisional Order made by the Minister of Transport under the Portsmouth Corporation Act 1930 relating to Portsmouth Corporation trolley vehicles. [30th July 1948.]

WHEREAS under the authority of section thirty-two of the Portsmouth Corporation Act 1930 the Minister of Transport has made the Provisional Order set out in the schedule to this Act annexed : 20 Geo. 5.
c. lii.

And whereas a Provisional Order made by the Minister of Transport under the authority of the said section is not of any validity or force whatever until the confirmation thereof by Act of Parliament :

And whereas it is expedient that the Provisional Order made by the Minister of Transport under the authority of the said section and set out in the schedule to this Act annexed be confirmed by Act of Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Order set out in the schedule to this Act annexed shall be and the same is hereby confirmed and all the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full force and validity and the date of the same shall be the date of the passing of this Act. Confirmation of Order in schedule.

2. This Act may be cited as the Portsmouth Corporation Short title. (*Trolley Vehicles*) Order Confirmation Act 1948.

SCHEDULE.

PORTSMOUTH CORPORATION.

Order authorising the lord mayor aldermen and citizens of the city of Portsmouth to use trolley vehicles upon certain routes in the city of Portsmouth.

Short and
collective titles.

1.—(1) This Order may be cited as the Portsmouth Corporation (Trolley Vehicles) Order 1948.

(2) The Portsmouth Corporation (Trolley Vehicles) Act and Order 1930 and 1935 and this Order may be cited together as the Portsmouth Corporation (Trolley Vehicles) Act and Orders 1930 to 1948.

Interpretation.

2. In this Order the following expressions have unless the subject or context otherwise requires the meanings hereinafter assigned to them (namely) :—

“ The city ” means the city of Portsmouth ;

“ The Corporation ” means the lord mayor aldermen and citizens of the city ;

“ The Act of 1930 ” means the Portsmouth Corporation Act 1930 ;

“ Trolley vehicle ” has the meaning assigned to it by section 4 (Interpretation) of the Act of 1930.

Power to use
trolley vehicles
upon certain
routes.

3. The Corporation may use trolley vehicles upon the following routes in the city :—

Route No. 1. (1 mile 7 furlongs 0·45 chains or thereabouts in length) commencing at the junction of Havant Road London Road and High Street (Cosham) proceeding along Havant Road to and terminating at a point 2 chains east of its junction with Rectory Avenue ;

Route No. 2. (2 miles 7 furlongs 9·31 chains or thereabouts in length) commencing at the junction of Milton Road Eastney Road and Goldsmith Avenue proceeding along Milton Road to and over Copnor Bridge thence proceeding along Copnor Road to and terminating at its junction with London Road ;

Route No. 3. (2 furlongs 2·27 chains or thereabouts in length) commencing by a junction with Route No. 2 authorised by this Order at the southern junction of Baffins Road and Milton Road proceeding along Baffins Road to and terminating by a junction with Route No. 2 authorised by this Order at the northern junction of Baffins Road and Milton Road ;

Route No. 4. (3 furlongs or thereabouts in length) commencing in Gladys Avenue at the terminus of the existing trolley vehicle system proceeding along Gladys Avenue to and terminating at its junction with Northern Parade ;

Route No. 5. (5 furlongs 2·4 chains or thereabouts in length) commencing at the junction of London Road and Stubbington Avenue proceeding along Stubbington Avenue to and terminating by a junction with Route No. 2 authorised by this Order in Copnor Road at a point therein opposite Burrfields Road ;

Route No. 6. (5 furlongs 3·9 chains or thereabouts in length) commencing by a junction with Route No. 2 authorised by this Order in Milton Road at a point 3 chains south-east of the centre of Copnor Bridge proceeding along Milton Road and Tangier Road to and terminating at a point therein 4·54 chains east of its junction with Stanley Avenue ;

Route No. 7. (2 furlongs 3·77 chains or thereabouts in length) commencing at the junction of Commercial Road and Edinburgh Road proceeding along Edinburgh Road and Unicorn Road to and terminating at its junction with Flathouse Road :

Provided that—

- (a) before equipping any trolley vehicle route to include a turning point or before arranging for a new turning point on any route the Corporation shall submit plans of the turning point to the Minister of Transport for approval ;
- (b) if the Corporation shall not have commenced to use trolley vehicles upon each of the routes authorised by this Order within five years from the passing of the Act confirming this Order or such extended time as the Minister of Transport may upon the application of the Corporation allow the powers conferred by this Order shall so far as they relate to the use of trolley vehicles upon the route upon which the Corporation shall not have commenced to use trolley vehicles cease to be exerciseable.

4. The provisions of Part IV (Trolley vehicles &c.) of the Act of 1930 as amended by the Road Traffic Act 1930 and of the enactments incorporated therewith or applied thereby in so far as those provisions relate to trolley vehicles and are applicable to and not inconsistent with or rendered unnecessary by the provisions of this Order shall apply to the trolley vehicles and routes referred to in and authorised by this Order in like manner as they apply to the trolley vehicles and routes authorised by the said Part IV.

Application of
Part IV of Act
of 1930.
20 & 21 Geo. 5.
c. 43.

5.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for and in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column of the said table and they shall pay off all moneys so borrowed within such periods

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(*Trolley Vehicles*): *Order Confirmation Act, 1948.*

as the Corporation may determine not exceeding those respectively mentioned in the third column of the said table (namely) :—

Purpose.	Amount.	Period for repayment.
(a) The provision of trolley vehicles	£80,000	Ten years from the date or dates of borrowing.
(b) The provision of trolley vehicle equipment and the construction of other works necessary for working trolley vehicles along the routes authorised by this Order.	£37,000	Fifteen years from the date or dates of borrowing.
(c) The payment of the costs charges and expenses of this Order.	The sum requisite	Five years from the confirmation of this Order.

23 & 24 Geo. 5.
c. 51.

(2) For the purposes of subsection (2) of section 63 (Power to borrow and repayment of borrowed moneys) of the Act of 1930 as modified by section 197 of the Local Government Act 1933 the purposes of this Order shall be deemed to be purposes of the tramway undertaking of the Corporation.

10 & 11 Geo. 5.
c. lxviii.

(3) The provisions of this section shall not limit the powers conferred upon the Corporation by section 149 (Power to use one form of mortgage for all purposes) of the Portsmouth Corporation Act 1920.

Saving for
powers of
Treasury.

8 & 9 Geo. 6.
c. 18.

6. It shall not be lawful to exercise the powers of borrowing conferred by this Order (other than the power of borrowing to pay the costs charges and expenses of this Order as hereinafter defined) otherwise than in compliance with the provisions of the Local Authorities Loans Act 1945 or of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946.

9 & 10 Geo. 6.
c. 58.

Procedure for
making
byelaws.

33 & 34 Vict.
c. 78.

7. The provisions of section 250 (Procedure &c. for making byelaws) of the Local Government Act 1933 shall not apply in respect of byelaws to be made under section 46 (Byelaws by local authority. Promoters may make certain regulations) of the Tramways Act 1870 or under section 69 (Shelters or waiting rooms and barriers) of the Portsmouth Corporation Act 1920.

Inquiries by
Minister of
Transport.

8. The Minister of Transport may hold such inquiries as he may consider necessary in regard to the exercise of any powers conferred upon him or the giving of consents under this Order and section 290 of the Local Government Act 1933 shall apply accordingly.

Costs of Order.

9. All costs charges and expenses of and incidental to the preparing and obtaining and confirming of this Order or otherwise incurred in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation.

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